

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4392

By: Miller

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8 COMMITTEE SUBSTITUTE

9 An Act relating to aerospace; creating the
10 Sustainable Emerging Aviation Services Investment
11 Program; defining terms; requiring certain
12 designations; requiring specific requirements be met;
13 allowing for certain investments; prohibiting certain
14 investments; providing for the promulgation of rules;
15 creating the Sustainable Emerging Aviation Services
16 Investment Program Revolving Fund; establishing
17 revolving fund characteristics; declaring funds
18 appropriated; providing for codification; and
19 providing an effective date.

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22 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

23 SECTION 1. NEW LAW A new section of law to be codified
24 in the Oklahoma Statutes as Section 600 of Title 3, unless there is
25 created a duplication in numbering, reads as follows:

26 This act shall be known and may be cited as the "Sustainable
27 Emerging Aviation Services Investment Program (SEA SIP)".

1 SECTION 2. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 601 of Title 3, unless there is
3 created a duplication in numbering, reads as follows:

4 As used in this act:

5 1. "Advanced Air Mobility" or "AAM" shall mean the definition
6 found in the FAA Reauthorization Act of 2024, P.L. 118-63, Section
7 951; 138 Stat. 1375;

8 2. "Department" shall refer to the Oklahoma Department of
9 Aerospace and Aeronautics;

10 3. "Emerging Aviation Services" shall refer to either AAM,
11 SUAS, or nontraditional aircraft;

12 4. "Nontraditional aircraft" shall refer to aircraft, systems,
13 and operations that are being integrated into the National Airspace
14 System (NAS), including all other forms of Electric Vehicle Takeoff
15 and Landing (EVTOL), Alternate Power Plant, Short Takeoff and
16 Landing (STOL), and Autonomous Aircraft that are larger than fifty-
17 five (55) pounds but less than one thousand three hundred twenty
18 (1,320) pounds capable of carrying cargo or human passengers and may
19 operate under 14 CFR, Part 107 with appropriate waivers, Part 91,
20 Part 135, Part 137, and Part 141 operations or those technologies
21 that have a maximum takeoff weight greater than one thousand three
22 hundred twenty (1,320) pounds and that do not fit the definition of
23 Advanced Air Mobility or Small Uncrewed Aerial Systems;

1 5. "Site" shall mean a public entity engaged in a partnership
2 or collaboration for the purposes of this act;

3 6. "Small Uncrewed Aerial Systems (SUAS)" or "drone" shall
4 refer to unmanned aircraft weighing less than fifty-five (55) pounds
5 gross weight on takeoff; and

6 7. "Supporting airport" shall refer to a public use airport
7 that is included in the Oklahoma Airport System Plan.

8 SECTION 3. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 602 of Title 3, unless there is
10 created a duplication in numbering, reads as follows:

11 A. The Oklahoma Department of Aerospace and Aeronautics shall
12 designate not less than five sites as Advanced Air Mobility (AAM)
13 pilot sites within the state. Such sites shall be eligible for AAM-
14 specific support and regulatory assistance; provided, the site meets
15 program guidance as issued by the Department. Of the designated
16 sites, not less than two sites shall be designated as supporting
17 airports and demonstrate a commitment to publicly operated AAM
18 infrastructure, the public benefit of such technology, and a pathway
19 to financial stability.

20 B. The Department may approve and provide funding opportunities
21 at approved sites for infrastructure, equipment, software, or other
22 needs the site may have to work with AAM companies, operators, and
23 supportive industries. The Department shall not approve funding for
24 research and development opportunities nor the purchase of

1 nontraditional aircraft or small uncrewed aerial systems (SUAS).
2 The Department shall retain ownership of any asset it invests in.
3 Sites shall be required to sign agreements acknowledging that the
4 Department retains the ownership of the asset. The Department may
5 enter into agreements with the site or approved operators to recoup
6 the financial investment the Department has made in the asset. Such
7 funds shall be deposited in the Sustainable Emerging Aviation
8 Services Investment Program (SEA SIP) Revolving Fund created in
9 Section 4 of this act.

10 C. The Department shall promulgate rules for SEA SIP.

11 D. Beginning July 1, 2027, and every year thereafter, the
12 Department shall submit a report to the Governor, the Speaker of the
13 Oklahoma House of Representatives, the President Pro Tempore of the
14 Oklahoma State Senate, the Appropriations and Budget chair of the
15 Oklahoma House of Representatives, the Appropriations chair of the
16 Oklahoma State Senate, the Appropriations and Budget Transportation
17 Subcommittee chair for the Oklahoma House of Representatives, and
18 the Appropriations General Government and Transportation
19 Subcommittee chair for the Oklahoma State Senate. The report shall
20 detail what funds have been expended throughout the year, what
21 projects have been commenced, what projects are ongoing, what
22 projects were completed, what, if any, maintenance is required of
23 the projects, and what revenues were received from the project.

1 SECTION 4. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 603 of Title 3, unless there is
3 created a duplication in numbering, reads as follows:

4 There is hereby created in the State Treasury a revolving fund
5 for the Oklahoma Department of Aerospace and Aeronautics to be
6 designated the "Sustainable Emerging Aviation Services Investment
7 Program (SEA SIP) Revolving Fund". The fund shall be a continuing
8 fund, not subject to fiscal year limitations, and shall consist of
9 all monies received by the Department as directed by law, from
10 federal and state grants or appropriations, from private donations,
11 and from revenues or fees recouped from assets in which the
12 Department invests. All monies accruing to the credit of said fund
13 are hereby appropriated and may be utilized in accordance with the
14 provisions of the Sustainable Emerging Aviation Services Investment
15 Program. Expenditures from said fund shall be made upon warrants
16 issued by the State Treasurer against claims filed as prescribed by
17 law with the Director of the Office of Management and Enterprise
18 Services for approval and payment.

19 SECTION 5. This act shall become effective November 1, 2026.
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21 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated
22 03/09/2026 - DO PASS, As Amended.
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